re:thought × reLEARN

— INDUSTRY BRIEFING · TUESDAY, OCTOBER 27, 2026

Whose listing is it?

Compass, the listing fight, the new Wisconsin forms, and where we stand.

Pedro Bando Rivera, Broker/Owner

INDUSTRY BRIEFING | FLORIDA + WISCONSIN | EN / ES

— THE YEAR OF

2026 Is THE Year of SYSTEMS and NEW Skill Developments.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Mission

To redefine traditional real estate expectations delivering a **personalized**, **tech-driven**, and **client-centric** approach to buying and selling real estate.

Vision

To succeed in becoming the local industry **leader** focused on **humanizing** the real estate industry, leveraging innovation, investment and growth, while remaining a **community resource**.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Misión

Redefinir las expectativas tradicionales del sector inmobiliario, brindando un enfoque **personalizado**, impulsado por la **tecnología** y centrado en el **cliente** para la compra y venta de propiedades.

Visión

Triunfar en convertirnos en el **líder local** de la industria enfocado en **humanizar** el sector inmobiliario, aprovechando la innovación, la inversión y el crecimiento, mientras seguimos siendo un **recurso para la comunidad**.

STORY TIME

This fight gets decided at the kitchen table.

Not in court. Whoever explains it best to the seller wins the listing.

Esta pelea se decide en la mesa de la cocina, no en la corte. El que mejor se la explique al vendedor se gana el listing.

COMPASS VS. THE MLSS · OCTOBER 2026 · NO COURT HAS RULED YET

RETHOUGHT REAL ESTATE · RELEARN · INDUSTRY BRIEFING



— ACT 1 · WHAT'S GOING ON

One company. Nine brands.

Compass bought Anywhere Real Estate. The deal closed **January 9, 2026**, months ahead of schedule.

Compass THE BUYER	**Coldwell Banker** VIA ANYWHERE	**Century 21** VIA ANYWHERE
Sotheby's Int'l Realty VIA ANYWHERE	**Corcoran** VIA ANYWHERE	**ERA** VIA ANYWHERE
BHG Real Estate VIA ANYWHERE	**@properties** BOUGHT JAN 2025	**Christie's Int'l RE** BOUGHT JAN 2025

COMPASS INTERNATIONAL HOLDINGS

The biggest brokerage group in the U.S.

39%
of 2025 sales volume*

29%
of transaction sides*

~340K
agents, with franchises

Bigger than the brokerages ranked #3 through #7 combined. Deal value: about $1.6B in stock, about $10B counting Anywhere's debt.

* COUNTING FRANCHISE BRANDS, AS A SHARE OF THE FIRMS REALTRENDS VERIFIES · HOUSINGWIRE / REALTRENDS 2025 · T3 SIXTY MEGA 1000, APR 2026 · AP

— ACT 1 · THE PLAYBOOK

Compass markets a listing through three doors

In 2026 the fight moved from hidden homes to **hidden history.**

DOOR 1 · PRIVATE EXCLUSIVE

Only Compass sees it

Compass-family agents and their buyers. Nobody else gets in.

- ✕ On public websites
- ✕ Days on market
- ✕ Price-cut history

DOOR 2 · COMING SOON

Public, minus the history

On Compass.com, and on Redfin since March 2026.

- ✓ On public websites
- ✕ Days on market
- ✕ Price-cut history

DOOR 3 · THE MLS

Everyone sees everything

Every agent, every portal, the full history.

- ✓ On public websites
- ✓ Days on market
- ✓ Price-cut history

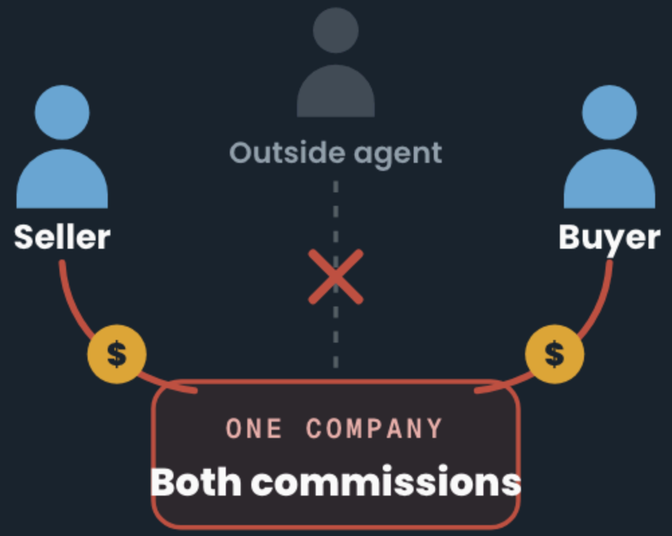
57% of new Compass listings launched as **Coming Soon** in July 2026. Reffkin's target was about 80% by fall.

REAL ESTATE NEWS · ROCKET / REDFIN ALLIANCE, FEB 26, 2026 · MIKE DELPRETE, JUL 2026

— ACT 1 · WHO IT SERVES

Private for the seller, or for the brokerage?

Compass calls it **seller choice.** Here's who the private door pays.



72% more often, off-market sales end with one brokerage on both sides
COMPASS INTERNAL SLIDE · ZILLOW LAWSUIT

41% of Compass's sampled D.C. sales had Compass on both sides. Rivals: 11 to 18%.
CONSUMER POLICY CENTER · APR 2026

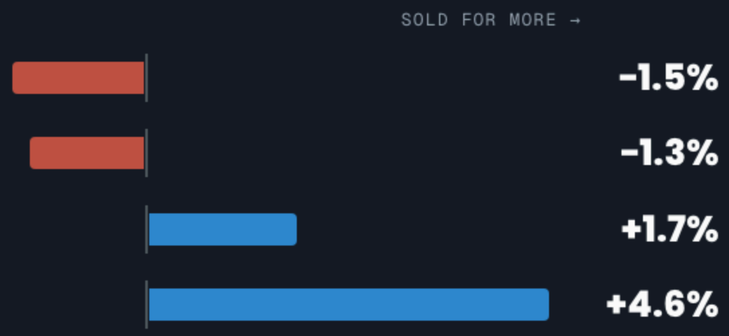
90% of outside buyer-agent requests for Compass private listings were ignored or refused
MIKE DELPRETE TEST · VIA CONSUMER POLICY CENTER

Compass pays the listing agent **10%** when they hand a buyer to another Compass agent who closes.

— ACT 1 · THE PRICE FIGHT

Does private cost the seller money? The studies disagree.

SALE PRICE VS. HOMES SOLD ON THE MLS



Different homes, different questions. Zillow counts homes that never reached the MLS. Compass counts homes that pre-marketed, then sold on it. Both can be true.

WHERE IT LANDS HARDEST

4.0%

lower prices on off-MLS sales in majority-Hispanic neighborhoods. 3.1% in majority-Black ones.

SELLERS WHOSE AGENT RECOMMENDED A PRIVATE NETWORK



ZILLOW RESEARCH, 2025 · ZILLOW IS SUING COMPASS. READ IT AS A CAUTION.

— ACT 1 · THIS MONTH

October: the MLSs fight back

SEP 30
Reffkin's ultimatum
Stop fining agents over office exclusives by Oct 6, or get sued.

OCT 5
CRMLS sues first
The big California MLS asks a court to declare its rules legal.

OCT 16
Compass sues back
And offers to pay its agents' fines if they sign over their right to sue.

OCT 20
OneKey says no
New York's MLS rejects the demand.

OCT 21
Six more MLSs sue
Arizona, Colorado, North Carolina and the Bay Area.

OCT 26
Open Real Estate
KW, eXp, HomeServices and Real / RE/MAX answer. More in Act 3.

ALSO ON THE BOARD

NY attorney general antitrust probe **Jun 3** | Shareholder class action **Oct 7** | Stock **~$13.50 → ~$9** | Still profitable **record Q2** | Q3 earnings **Nov 5**

NO COURT HAS RULED IN ANY OF THESE CASES · HOUSINGWIRE · INMAN · THE REAL DEAL · COMPASS 8-K

— ACT 1 · THE STATES

The states are picking a side

Public by default. Private only if the seller signs for it.

Washington — IN EFFECT

SB 6091, since June 2026. Private marketing has to run alongside public marketing.

Connecticut — IN EFFECT

SB 340, since Oct 1, 2026. A standard seller opt-out form and $5,000 fines.

OUR STATE

Wisconsin — JAN 1, 2027

2025 Act 69. Public online marketing within one business day, unless the seller signs the WB-55.

New York — PASSED

Passed the legislature in June. We couldn't confirm the governor signed it.

Illinois + Hawaii — PENDING

Bills pending. No vote yet.

OUR STATE

Florida — NO STATUTE

No law like this. **Stellar MLS** already enforces strict rules. More at the end.

HOUSINGWIRE · RISMEDIA · NAR OFFICE-EXCLUSIVE GUIDANCE, JUL 9, 2026

— ACT 2 · WISCONSIN FORMS

New WB forms. Mandatory January 1.

The Real Estate Examining Board revised them to put **2025 Wisconsin Act 69** into practice.

66 DAYS UNTIL MANDATORY USE

Oct 1, 2026
OPTIONAL USE BEGINS

Today, Oct 27
YOU ARE HERE

Jan 1, 2027
MANDATORY

LISTING CONTRACTS

- **WB-1** Residential
- **WB-2** Farm
- **WB-3** Vacant land
- **WB-4** Condominium

BUYER SIDE

- **WB-36** Buyer agency agreement

OFFERS

- **WB-11** Residential offer
- **WB-12** Farm offer
- **WB-13** Vacant land offer
- **WB-14** Condo offer
- **WB-24** Option to purchase

BRAND NEW

WB-55 Public Marketing Opt-Out Agreement

Also: RECR and VLDR update, WRA-DRC referral disclosure

GET THEM IN TRANSACTIONS (ZIPFORM EDITION) OR THE WRA FORMS LIBRARY · SOURCE: WRA.ORG FORM UPDATES, OCTOBER 2026

— ACT 2 · WB-1 LISTING CONTRACT

Four duties in every listing

WB-1 RESIDENTIAL LISTING CONTRACT — LINES 22-31 · PLAIN ENGLISH

(a) Share the property's information with any agent representing a buyer.

(b) Respond to any buyer's agent who asks.

(c) Make the property available for showings.

(d) Within one business day of the listing start, market it on at least one public website that buyers and any buyer's agent can see.

\+ The seller acknowledges the state brochure on the benefits of public marketing.

NEW BOX · LINES 41-46

No public marketing only if the seller signs the WB-55. It becomes part of the listing.



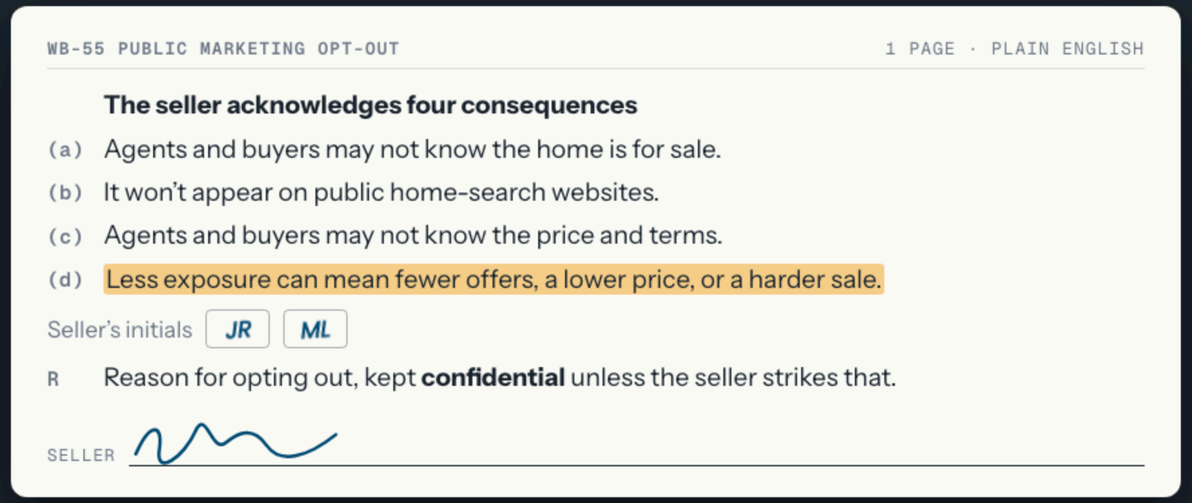
Under Clear Cooperation, the clock started when you began marketing. **Now it starts with the listing.**

SAY IT LIKE THIS

Our default is public on day one. That's the law now, and it's how we already work.

— ACT 2 · BRAND-NEW FORM

WB-55: the only way out is in writing



WB-55 PUBLIC MARKETING OPT-OUT — 1 PAGE · PLAIN ENGLISH

The seller acknowledges four consequences

(a) Agents and buyers may not know the home is for sale.

(b) It won't appear on public home-search websites.

(c) Agents and buyers may not know the price and terms.

(d) Less exposure can mean fewer offers, a lower price, or a harder sale.

Seller's initials JR ML

R Reason for opting out, kept **confidential** unless the seller strikes that.

SELLER

WHAT COUNTS AS MARKETING TO THE PUBLIC

- Public home-search websites
- Yard signs
- Window flyers
- Brokerage website
- Social media
- Email blasts
- **Multi-brokerage listing-sharing networks**

OUR READ, NOT A RULING

In Wisconsin, Open Real Estate's members-only tier looks like public marketing. We confirm with the **WRA Legal Hotline** before anyone uses it.

TWO MORE RULES

Seller changes their mind? **WB-42 amendment.** Start marketing anyway? MLS rules can kick in.

— ACT 2 · COMPENSATION

The seller offers. The offer documents it.

New WB-1 language. State law prohibits a firm from paying compensation to another firm, referral fees aside. If the buyer's firm gets paid by the other side, the seller pays it.

STEP 1 · WB-1 LISTING

The seller decides

Seller **does** or **does not** offer compensation to another firm. Left blank, the answer is **does not**.

→

STEP 2 · WB-11 OFFER

The offer documents it

New section. Check one: **buyer agent compensation** for a buyer client, or the **seller's offer of compensation** for a buyer customer. Write the % or $.

→

STEP 3 · CLOSING

The seller pays the buyer's firm

Paid at closing. It doesn't create an agency relationship with the seller.

WB-36 · BUYER AGENCY

Your firm can ask the seller to pay, but only with **every party's written consent** first. The buyer pays the rest, plus anything the firm doesn't collect.

ON EVERY FORM

No standard commission. Not set by law. **Fully negotiable.** The same goes for offers of compensation.

WIS. STAT. § 452.19: SELLER COMPENSATION TO ANOTHER FIRM IS DOCUMENTED IN THE OFFER TO PURCHASE (1 TO 4 UNIT RESIDENTIAL) · WRA EDUCATIONAL REDLINES

— ACT 2 · ALSO NEW

Three smaller changes

RECR ITEM E3M · VLDR ITEM D2M

Special assessments question

A new seller question about **neighborhood improvement special assessments**, which these districts can now charge to pay for infrastructure.

IN EFFECT OCT 1, 2026 · 2025 ACT 120

WB-11 OFFER · OPTIONAL BOX

Re-prorate taxes after closing

Taxes get re-prorated on the **actual tax bill**. The buyer forwards it within 5 days. The parties settle within 30 days. Not the firms' job.

PART OF THE NEW WB-11

WRA-DRC · NEW, OPTIONAL

Disclosure of Referral Compensation

Disclose a referral fee when you send or receive a referral. **Wisconsin law doesn't require it.** It's there for transparency.

WRA FORM · OCTOBER 2026

HOMEWORK, WISCONSIN AGENTS

- ✓ Download the WB-1, WB-11, WB-36 and WB-55 redlines
- ✓ Use the new forms now
- ✓ Practice the WB-55 talk before a seller asks

— ACT 3 · OPEN REAL ESTATE

Open Real Estate: the industry votes for open

ANNOUNCED OCT 26, 2026

Keller Williams	AGNT	HomeServices	Real REMAX Group
Founder	eXp Realty + NextHome	Berkshire Hathaway HomeServices	Real Brokerage + RE/MAX

EARLY PARTICIPANTS: WINDERMERE · BROWN HARRIS STEVENS · SAMSON · LAMACCHIA · IRON VALLEY

STEP 1

Enter it once

The broker enters the listing one time, in standard fields. The broker owns it.

→

STEP 2

Every member sees it

Shared with every member brokerage. **Public** or **members-only**, the broker picks.

→

STEP 3

It goes everywhere

Sent out to MLSs, portals, appraisers and data services.

In within **1 business day** · **Free** for any licensed brokerage · Data money split **equally per listing**

STATUS Still a plan. Tech vendor in Q1 2027, no launch date, no MLS signed. Compass was invited and hasn't joined.

— ACT 3 · OPEN REAL ESTATE

A signal, not a savior

WHAT IT WOULD DO

- ✓ Give every firm outside Compass one shared network
- ✓ Answer the pitch that 340,000 Compass agents will see the home
- ✓ One entry, sent to MLSs and portals
- ✓ Pay a small firm the same per listing as a giant

WHAT IT WON'T DO

- ✗ Open Compass, Coldwell Banker or Sotheby's private listings
- ✗ Exist before 2027
- ✗ Force hidden price history into view. No rule yet.
- ✗ Change Wisconsin law. Members-only still needs a WB-55.

The industry is voting for open. We already work that way.

FREE LETTER OF SUPPORT · OPENREALESTATE.COM

— ACT 3 · OUR POSITION

A boutique has no inventory to protect

THE MEGA-BROKERAGE INCENTIVE



Keep it in. Sell it to our buyer. Get paid twice.

THE RETHOUGHT INCENTIVE



Get it seen. Find the best buyer. Get the seller paid.

53% of REALTORS work at independent firms
NAR MEMBER PROFILE 2026

66% of sellers hired an agent they were referred to or used before
NAR PROFILE 2025

40% of agents who switch firms cite leadership and culture. 23% cite the split.
1000WATT, 2025

— ACT 3 · OUR PROMISE

The reThought Exposure Promise

SAY IT WORD FOR WORD

Every reThought listing goes public, on the MLS and the portals, within one business day. Private only if you choose it, in writing, after you see what you give up.

Toda propiedad de reThought sale al público, en el MLS y en los portales, en un día laborable. Privada solo si usted lo escoge, por escrito, después de ver lo que pierde.

FLORIDA

Stellar MLS: in the MLS one business day after any public marketing. Delayed distribution max 5 days, seller signs.

WISCONSIN

WB-1: public online marketing within one business day. Private only with a signed WB-55.

OPEN REAL ESTATE

Same one-business-day rule for every member listing.

— ACT 4 · YOUR KIT

The kitchen-table answer, in 60 seconds

YOUR SELLER

The Compass agent said they can sell it privately first. Should we do that?

YOU · DON'T TRASH COMPASS. ASK THREE QUESTIONS.

Good question. Before you decide, ask any agent these three things:

1

How many agents will see my home?

Private means one company's agents and their buyers.

2

Who will represent the buyer?

Off-market sales end with one firm on both sides 72% more often.

3

What won't buyers see?

Coming Soon hides days on market and price cuts.

With us, everyone sees it on day one. If you still want private, we'll do it right, in writing. It's your call.

— ACT 4 · EN ESPAÑOL

La respuesta de la mesa de la cocina

TU VENDEDOR

El agente de Compass dijo que la puede vender en privado primero. ¿Lo hacemos?

TÚ · NO HABLES MAL DE COMPASS. HAZ TRES PREGUNTAS.

Buena pregunta. Antes de decidir, pregúntele a cualquier agente estas tres cosas:

1

¿Cuántos agentes van a ver mi casa?

Privado quiere decir los agentes de una sola compañía y sus compradores.

2

¿Quién va a representar al comprador?

En ventas fuera del mercado, una sola firma termina en los dos lados 72% más a menudo.

3

¿Qué no van a ver los compradores?

Coming Soon esconde los días en el mercado y las rebajas de precio.

Con nosotros, todo el mundo la ve desde el primer día. Si todavía la quiere en privado, lo hacemos bien, por escrito. La decisión es suya.

— ACT 4 · FLORIDA

Florida: the rules that hit you personally

5 BUSINESS DAYS — to enter a listing in Stellar or file an exclusion.

1 BUSINESS DAY — after any public marketing, it has to be in the MLS.

5 CALENDAR DAYS — max for delayed distribution, and the seller signs.

0 TEASERS — A social-media post during an exclusion is a violation.



— LIVE EXERCISE • 10 minutes

Role-play the kitchen table

1

Pair up

One seller, one agent.

```
Seller picks a city: Tampa, Orlando,
Milwaukee or Racine.
```

2

Read the pitch

The seller reads the Compass pitch out loud.

```
"340,000 agents will see it privately,
and nobody sees price cuts."
```

3

Answer in 60 seconds

Three questions, then the promise. No trashing Compass.

```
How many? Who? What won't they see?
```

4

Switch

Switch roles. Then do it again in the other language.

```
EN → ES · ES → EN
```

> Sellers, listen for one thing. Did you feel respected, or sold to?

— AI SHORTCUT · PRACTICE PARTNER

Use AI to practice the objection

Copy this into Claude or ChatGPT. It plays the seller, pushes back, and scores you.

COPY · PASTE INTO YOUR AI — CLAUDE / CHATGPT / GEMINI

```
Act as a homeowner in [Tampa / Racine] selling a [3-bed, $350K] home. A Compass agent just pitched you a Private Exclusive: "340,000 agents will see it privately, and buyers won't see price cuts."

I'm a reThought agent. Push back on me with 3 tough objections, one at a time. After each answer, score me 1-5 on clear, honest and seller-first.

Rules: don't let me trash Compass. Make me use real facts, like one firm on both sides 72% more often off-market, Coming Soon hiding days on market, and the WB-55 in Wisconsin.

At the end, rewrite my best answer in English and in Puerto Rican Spanish, under 60 seconds each.
```

> Never quote a number you can't source. The facts are the pitch.

— BEFORE YOU LEAVE · SAY IT OUT LOUD

Three commitments. One promise.

COMMITMENT 1

Say the promise

Sixty seconds, both languages, no notes.

- ✓ Exposure Promise, word for word
- ✓ The three questions

COMMITMENT 2

Know your state

Wisconsin agents switch to the new forms. Florida agents know Stellar's limits.

- ✓ WI: WB-1, WB-11, WB-36, WB-55
- ✓ FL: 5-day max, no teasers

COMMITMENT 3

Tell your buyers

We search every channel. No single website shows everything anymore.

- ✓ MLS + Zillow Preview
- ✓ Compass See It First

NOV 3

Next Tuesday, we **role-play the kitchen table live.** Compass reports earnings Nov 5, and I'll send an update.

Sunlight is said to be the best of disinfectants.

LOUIS D. BRANDEIS

Se dice que la luz del sol es el mejor de los desinfectantes.

Open by default. Every listing, every time. See you Tuesday, November 3.